

File No.: EXP202312990

RESOLUTION OF RECONSIDERATION APPEAL

Examined the reconsideration appeal filed on April 17, 2024, by A.A.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated March 22, 2024, and based on the following

FACTS

FIRST: On March 22, 2024, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202312990, in which it was agreed to dismiss the claim for the exercise of rights made by the appellant against the CASTILLA Y LEÓN EDUCATION DEPARTMENT (hereinafter, the respondent).

SECOND: The resolution now appealed was duly notified to the appellant on March 27, 2024, as evidenced by the acknowledgment of receipt in the file.

THIRD: The appellant has submitted a reconsideration appeal to this Spanish Agency for Data Protection, in which, in summary, the following considerations are made:

1.- It asserts that the resolution now appealed is based on false evidence since it states that one of the requests for the right of access addressed therein was made in person when both were, in fact, submitted electronically.

2.- It then argues that two different requests registered on different dates have been accumulated, one regarding the evaluation of the subject of physics and chemistry and another regarding the psychopedagogical tests conducted during the academic year for her daughter, with the resolution only referring to the second of these and thus leaving the one related to the evaluation of the subject of physics and chemistry unanswered.

3.- Subsequently, it considers that the admission of the claims presented to the AEPD was motivated by the consideration that her right had not been satisfied, so the dismissal of the request would be contradictory.

4.- In her fourth, sixth, and seventh allegations, the appellant emphasizes arguments already referred to during the rights procedure, relating, respectively, to Article 12.3 of the GDPR and the well-known Nowak judgment of the Court of Justice of the European Union (case C-434/16) to reaffirm her right to receive all requested documentation and for it to be sent to her email.

Finally, she concludes her writing requesting that the appealed resolution be declared null or void and that the Castilla y León Education Department be urged to provide access to the requested personal data through the expressly indicated electronic means by the interested party.

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Response to the allegations presented

1.- Regarding the first of her assertions, it should be noted that, although it is true that it was indicated that the means of presentation of the right of access was in person through registration, resulting in it being submitted electronically, it is also true that this reason does not undermine the arguments set forth in the resolution now appealed that determine the dismissal of the claims presented to this Agency. This is because, even if both requests had been made through the electronic registry, it is emphasized that the response through the same means, that is, by electronic submission, is not an indispensable condition to understand the request as attended, especially in cases such as the present one where the respondent has indicated that it does not have the necessary means for this. As stated

in the documents submitted on November 30, 2023, and February 14, 2024, the respondent asserts that "the educational centers of this Autonomous Community do not currently have electronic registration and/or notification systems that ensure receipt by the recipient, as well as the safeguarding of the privacy and security conditions established by the National Security Scheme."

2.- Regarding the grouping of the two claims presented by the now appellant, it should be highlighted, first of all, that she has been aware of the grouping of the claims throughout the procedure. This grouping is due to the application of the principle of procedural economy according to which the Administration must respond effectively with the maximum economy of means, avoiding dilatory procedures. Moreover, the AEPD, especially when it comes to the lack of attention to the exercise of a right from Article 15 to 22 of the GDPR, must attempt to resolve as quickly as possible to guarantee the fundamental right to data protection of the interested parties. By virtue of this,

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previously and given that both claims were received by this agency on the same date, they referred to the same claimant, were directed against the same data controller, and concerned analogous situations (exercise of the right of access, in relation to the same educational center and the same school year, among other issues), they were grouped together for joint processing. As indicated, this is done in order to address the claims as efficiently as possible.

It should be noted that the assertions made by the appellant regarding the lack of response to the claim concerning her daughter's physics and chemistry exams are inaccurate, as this matter has indeed been taken into account throughout the entire procedure. As can be verified in the administrative file in her possession, both claims were forwarded to the respondent, who also responded to both, and this is also reflected in the facts included in the resolution subject to appeal, which resolved both claims with a dismissive character.

3.- Regarding her third allegation, concerning the interpretation made by the appellant of the admission of her claims for processing, it seems necessary to reflect the content of Article 64.1 of the LOPDGDD, according to which "When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an agreement of admission for processing, which will be adopted in accordance with the provisions of Article 65 of this organic law. In this case, the deadline for resolving the procedure will be six months from the date on which the agreement of admission for processing was notified to the claimant. After this period, the interested party may consider their claim accepted."

For its part, Article 65 of the LOPDGDD, in its section 5, first paragraph, states that "The decision on the admission or inadmissibility for processing, as well as the one that determines, where appropriate, the referral of the claim to the main supervisory authority deemed competent, must be notified to the claimant within three months. If this notification does not occur after this period, it will be understood that the processing of the claim continues in accordance with the provisions of this title from the date on which three months have elapsed since the claim was received by the Spanish Agency for Data Protection, without prejudice to the Agency's authority to subsequently and expressly archive the claim."

In the present case, both claims were submitted to the AEPD on August 1, 2023, so on November 1, 2023, once the three-month period since their receipt had elapsed, a letter was issued to the claimant informing her of the admission of the claim due to the passage of time, which was notified to the claimant on November 2, 2023, as evidenced by the acknowledgment of receipt in the file.

That is to say, the admission of the claim was due solely to compliance with the applicable regulations, with the subsequent completion of the relevant procedures.

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such as the granting of a hearing to the parties and the subsequent resolution of the rights procedure in which, now, the substance of the matter was addressed, deciding on the dismissal of the claim.

Therefore, there is no contradiction between both moments as the appellant claims, but merely compliance with the applicable regulations by this Agency.

4.- Regarding the repeated allegations concerning the means and scope of the right of access, we proceed to reproduce what has already been stated in the resolution of the rights procedure:

“...During the processing of the present procedure, the entity being claimed, just as it had previously done with the claiming party, insists before this Agency that the personal data related to the exercise of the requested right of access is available to the claiming party at the requested locations.

The debate, therefore, centers on the means of delivering the copy of the personal data subject to the right, since while the claiming party asserts that they have the right to have it sent by email, the entity being claimed indicates that the copy of the personal data is available to the claiming party, so that they can choose the location that is most convenient for them at the secretary's office of the educational center where their daughter studies.

Article 12.3 of the GDPR states that “3. The data controller shall provide the data subject with information regarding its actions based on a request in accordance with Articles 15 to 22, and in any case, within one month of receiving the request. This period may be extended by a further two months if necessary, taking into account the complexity and number of requests. The controller shall inform the data subject of any such extensions within one month of receiving the request, indicating the reasons for the delay. When the data subject submits the request by electronic means, the information shall be provided by electronic means where possible, unless the data subject requests that it be provided in another way.” (the underlining is ours)

Completing the above, Article 15.3 of the GDPR establishes regarding the modality of the copy that “3. The data controller shall provide a copy of the personal data undergoing processing. The controller may charge a reasonable fee based on the administrative costs for any other copy requested by the data subject. When the data subject submits the request by electronic means, and unless they request that it be provided in another way, the information shall be provided in a commonly used electronic format.” (the underlining is ours)

In this regard, the Guidelines 01/2022 on the rights of data subjects - Right of access, version 1.0, adopted on January 18, 2022, state that,

“32. In the case of requests made by electronic means, the information shall be provided by electronic means whenever possible and unless the data subject requests otherwise (see Art. 12(3)). Article 15, paragraph 3, third sentence, complements this requirement in the context of access requests, indicating that the data controller is also obliged to provide the response in a commonly used electronic format, unless...”

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that the interested party requests otherwise. Article 15, paragraph 3, presupposes that, for data controllers who may receive electronic requests, it will be possible to provide the response to the request in a commonly used electronic format (for example, in PDF). This provision refers to all the information that must be provided in accordance with Article 15, paragraphs 1 and 2. Therefore, if the interested party submits the access request electronically, all the information must be provided in a commonly used electronic format. The formatting issues are developed in section 5. The data controller must, as always, apply appropriate security measures, particularly when it concerns a special category of personal data (see point 2.3.4). (the underlining is ours)

The regulation links the delivery of a copy of personal data by electronic means to cases where the interested party has exercised their right of access in this manner, unless they request otherwise, and all this without prejudice to the fact that the delivery in such a format may also be limited to cases where this is possible, especially when security measures must be applied, particularly if special categories of personal data are involved.

Each data controller will have to determine, regarding the modality of the copy of personal data, the means through which they will facilitate the right of access, taking into account the characteristics of

their own organization, the type of personal data affected, the necessary security measures, or the circumstances of the interested party, among others. And this is provided that it does not impose an excessive burden or an impediment for the interested party (frustrating the right itself).

This means that, in principle, the data controller cannot be required to provide the copy of personal data through electronic means.

In the case at hand, the claimant requested their right of access through a written submission presented in person at the registry of an official body, specifically the Ministry of Finance and Public Function, and addressed to the Provincial Directorate of Education of León. The exercise of access also referred to personal data related to psychopedagogical tests and assessments.

Furthermore, it must be taken into account that the copy of the personal data includes health data of the claimant, which requires the adoption of specific security measures.

And that the means provided by the responding party to deliver the copy of the personal data did not constitute an impediment for the claimant.

If we consider that the right of access has been available to the claimant since their request, this claim is deemed dismissive...”

III

Conclusion

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Examined the appeal for reconsideration presented by the appellant, who was the claimant, it does not provide new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution, as none of the annulment grounds set forth in Article 48 of the LPACAP are present, nor, even less, the nullity grounds of Article 47.

IV

Late Resolution

Due to reasons related to the functioning of the administrative body, therefore not attributable to the appellant, as of the date hereof, the mandatory pronouncement of this Agency regarding the present appeal has not been issued.

In accordance with the provisions of Article 24 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the sense of administrative silence in the procedures for challenging acts and provisions is dismissive.

Nevertheless, and despite the time elapsed, the Administration is obliged to issue an express resolution and to notify it in all procedures, regardless of their form of initiation, as provided in Article 21.1 of the aforementioned LPACAP.

Therefore, it is appropriate to issue the resolution that concludes the procedure of the appeal for reconsideration filed.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection

RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by A.A.A. against the Resolution of this Spanish Agency for Data Protection issued on March 22, 2024, in file EXP202312990.

SECOND: TO NOTIFY this resolution to A.A.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route, an administrative contentious appeal may be filed within two months from the day following the notification of this act, as provided in Article 46.1 of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of the aforementioned legal text.

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